

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	25-07-2026 12:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	25-07-2026 12:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	180 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Labour And Employment
विभाग का नाम/Department Name	Na
संगठन का नाम/Organisation Name	Employees State Insurance Corporation (esic)
कार्यालय का नाम/Office Name	Esic Hospital Adityapur
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id : Buyer Email id: dr.arvind.mahto@esic.gov.in
वस्तु श्रेणी /Item Category	Local Chemist Empanelment Service - Branded Medicines; 0-15 km(s) , Local Chemist Empanelment Service - Generic Medicines; 0-15 km(s) , Local Chemist Empanelment Service - Surgical Consumable Items; 0-15 km(s)
अनुबंध अवधि /Contract Period	2 Year(s) 1 Day(s)
बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का) /Minimum Average Annual Turnover of the bidder (For 3 Years)	2 Lakh (s)
उन्हीं/समान सेवा के लिए अपेक्षित विगत अनुभव के वर्ष/Years of Past Experience Required for same/similar service	1 Year (s)
वर्षों के अनुभव एवं टर्नओवर से एमएसई को छूट प्राप्त है / MSE Relaxation for Years Of Experience and Turnover	Yes Complete
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Experience Criteria,Bidder Turnover,Certificate (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer

बिड विवरण/Bid Details	
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	2
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	3
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	2 Days
अनुमानित निविदा मूल्य (सभी करों सहित) भारतीय रुपये में / Estimated Bid Value in INR (Inclusive of all taxes)	1000000
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मूल्य दर्शाने वाला वित्तीय दस्तावेज ब्रेकअप आवश्यक है / Financial Document Indicating Price Breakup Required	Yes
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

आवश्यकता/Required	No
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बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई अनुपालन/MII Compliance

एमआईआई अनुपालन/MII Compliance	Yes
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एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	100

1. If the bidder is a Micro or Small Enterprise as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Experience Criteria" as defined above subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.
2. If the bidder is a Micro or Small Enterprise (MSE) as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Bidder Turnover" as defined above subject to meeting of quality and technical specifications. If the bidder itself is MSE OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover, shall upload the supporting documents to prove his eligibility for Relaxation.
3. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.
4. Years of Past Experience required: The bidder must have experience for number of years as indicated above in bid document (ending month of March prior to the bid opening) of providing similar type of services to any Central / State Govt Organization / PSU. Copies of relevant contracts / orders to be uploaded along with bid in support of having provided services during each of the Financial year.
5. **Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within $L-1+ 15\%$ (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 100% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.
6. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of

quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

अतिरिक्त योग्यता /आवश्यक डेटा/Additional Qualification/Data Required

Scope of Work:[1781936930.pdf](#)

Payment Terms and Delivery Terms (Delivery Schedule):[1781936936.pdf](#)

Local Chemist Empanelment Service - Branded Medicines; 0-15 Km(s) (400000)

तकनीकी विशिष्टियाँ /Technical Specifications

विवरण/ Specification	मूल्य/ Values
कोर / Core	
Medicine Type	Branded Medicines
Distance from Buyer/Consignee Location	0-15 km(s)
एडऑन /Addon(s)	

अतिरिक्त विशिष्टि दस्तावेज़ /Additional Specification Documents

परेषिती/रिपोर्टिंग अधिकारी /Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	संसाधनों की मात्रा / Estimated Total Procurement Value without discount (INR) as per the Medicine type selected in the specification	अतिरिक्त आवश्यकता /Additional Requirement
1	Arvind Mahto	831013,Medical Superintendent, ESIC Hospital, Adityapur, Near Ashiyana Trade Center, Saldih Basti, Adityapur.	400000	N/A

Local Chemist Empanelment Service - Generic Medicines; 0-15 Km(s) (400000)

तकनीकी विशिष्टियाँ /Technical Specifications

विवरण/ Specification	मूल्य/ Values
कोर / Core	
Medicine Type	Generic Medicines

विवरण/ Specification	मूल्य/ Values
Distance from Buyer/Consignee Location	0-15 km(s)
एडऑन /Addon(s)	

अतिरिक्त विशिष्टि दस्तावेज़ /Additional Specification Documents

परेषिती/रिपोर्टिंग अधिकारी /Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	संसाधनों की मात्रा / Estimated Total Procurement Value without discount (INR) as per the Medicine type selected in the specification	अतिरिक्त आवश्यकता /Additional Requirement
1	Arvind Mahto	831013,Medical Superintendent, ESIC Hospital, Adityapur, Near Ashiyana Trade Center, Saldih Basti, Adityapur.	400000	N/A

Local Chemist Empanelment Service - Surgical Consumable Items; 0-15 Km(s) (200000)

तकनीकी विशिष्टियाँ /Technical Specifications

विवरण/ Specification	मूल्य/ Values
कोर / Core	
Medicine Type	Surgical Consumable Items
Distance from Buyer/Consignee Location	0-15 km(s)
एडऑन /Addon(s)	

अतिरिक्त विशिष्टि दस्तावेज़ /Additional Specification Documents

परेषिती/रिपोर्टिंग अधिकारी /Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	संसाधनों की मात्रा / Estimated Total Procurement Value without discount (INR) as per the Medicine type selected in the specification	अतिरिक्त आवश्यकता /Additional Requirement
1	Arvind Mahto	831013,Medical Superintendent, ESIC Hospital, Adityapur, Near Ashiyana Trade Center, Saldih Basti, Adityapur.	200000	N/A

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE 25% : The buyer can increase or decrease the contract quantity or contract duration up to 25 percent at the time of issue of the contract. However, once the contract is issued, the contract quantity or contract duration can only be increased up to 25 percent. Bidders are bound to accept the revised quantity or duration.

For lumpsum-based service contracts, the buyer may increase the scope of work and contract value up to 25 percent with the consent of the service provider

2. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

Buyer Added text based ATC clauses

General Terms and Conditions

1. Introduction: The Medical Superintendent, ESIC hospital, Adityapur - 831013 invites tender for Empanelment of Local Chemist for supply of Drugs and Dressings.

2. Instruction to the Bidder:

Estimated Value (approx..) for annual procurement of Drugs and Dressings through empaneled local chemist: Rs. 5,00,000/-. Gross estimated value of procurement for 2 years period of contract is estimated at Rs.10,00,000/-

a) Bidder are requested that, before quoting their rates or submitting tender, the tender form may please be read thoroughly, otherwise purchaser will not be held responsible for any error/

oversight of the bidder and likely rejection of bid. Firms intending to participate in the tender should first ensure that they fulfill all the eligibility criteria as prescribed under the terms and conditions mentioned herein before, otherwise the tender will be summarily rejected.

b) The Medical Superintendent, ESIC hospital, Adityapur reserves the right to ignore

nore / reject any bid, which fails to comply with the following instructions, terms & conditions.

c) The Medical Superintendent, ESIC hospital, Adityapur reserves to accept any tender in full or in part, to reject any bid or all at any time without assigning any reason(s) thereof and have the right to place orders on one or more firms.

3. Scope of work

Supply of drugs & dressings to ESIC hospital, Saldih Basti, Nr Ashiana More, Adityapur – 831013 (F.O.R. basis i.e. delivery at Hospital premises) based on the indent/Purchase order placed by this hospital as per the quoted price throughout the contract period.

4. Period of Contract: The contract is initially valid for a period of Two years from the date of signing of agreement and further extendable for one more year on mutual consent basis at the same price, terms & conditions of the bid.

5. Pre Qualification Criteria:

a) The bidder must have Chemist Shop/Commercial Establishment within 15 Km distance from ESIC Hospital, Adityapur – 831013.

b) The bidder must have experience of supplying medicines to Govt./Private hospital(s) **or experience for retail sale of medicines for 03 financial years**.

c) Bidder(s) participating in Tender must have valid retail license issued by Drug Controller Authority of the state for running the chemist shop for various categories of Allopathic drugs as applicable under the provisions of Drug & Cosmetic Act 1940, as on the date of bid opening above, for various categories.

d) The bidder must have a minimum average annual turnover of Rupees 2 lakhs. Turnover Certificate for preceding three financial years from the Chartered Accountant in addition to the audited balance sheet should be uploaded by the bidder to this effect.

e) Undertaking certificate as per Annexure-A should be submitted.

6. Acceptance of Tender (Prices)

The Acceptance of the tender will normally be on the basis of maximum discount offered by the local chemist. Separate discounts should be quoted for Branded Medicine, Generic Medicine, Branded surgical consumable items, Generic surgical consumable items and Oncology medicines.

Sl.No	Type of Medicine	Minimum discount offered
1	Branded Medicine	should not be less than 18% on M.R.
2	Generic Medicine	should not be less than 30% on M.R.P
3	Branded surgical consumable items	should not be less than 30% on M.R.P

The chemist will be paid on M.R.P i.e. Maximum Retail Price (which is printed on the packing /flaps /bottles) less discount and no Sales Tax, Octroi or any other Levy/tax will be paid which has to be borne by the chemist. Tampering on the printed MRP of the manufacturer by the local chemist by use of stickers or any other means will not be accepted. Items like Bandage. Gauge & Cotton will be treated as generic and discount will be applied accordingly.

7. Discount Offer:

The quoted discount (in %) should be on the Maximum Retail Price (MRP). The M.R.P should include all taxes including GST, surcharge and other taxes and other charges including packing and delivery charges. Payment shall be made after deduction of quoted discount on MRP, no other charges will be paid separately.

8. Delivery Terms

- a) The delivery of supplies will be made on next day by 10 AM of the collection of the Purchase order, at the premises of the hospital on F.O.R basis (Delivery at Central Medical Store, ESIC Hospital, Adityapur).
- b) Maximum allowable time for delivery of supplies will be 48 hours (Two days) from the collection of the purchase order.
- c) Drugs needed on an EMERGENCY/URGENT basis shall be supplied within 06 hours of request of the same. On no account should there be a delay or refusal by the local chemist to supply the drugs ordered.....

9. Penalty Clause:

- a) In case drugs are not delivered as per the condition the contract is liable to be cancelled at his own risk and cost. But if the delay shall have arisen from any cause, such as strikes, lockouts, fire accidents, riots etc., which, the Medical Superintendent, ESIC Hospital, Adityapur may admit it as reasonable ground for further time, the Medical Superintendent may allow such additional time required by circumstances of the case.
- b) Irregular supply/failure to fulfill the terms and conditions of the contract may entail for closure of contract.

10. The Medicines /drugs to be supplied should be of Standard quality. In case, it is found that any particular medicines have expired, or is substandard or spurious, the local Chemist is liable to be black listed for a period of three years for future participation in any ESI Tender. Besides, any other legal action as deemed fit will be taken. If for any unavoidable reason beyond your control to the satisfaction of the purchaser, it is not possible for Local chemist to immediately supply the medicines and the hospital is compelled to procure the same from other Local Chemist, extra expenditure incurred on this account will be recovered from subsequent bill(s). Under no circumstances the medicines requested in the supply order, be substituted for a different generic molecule than the one asked for.

11. The Supplier should give a declaration that the medicines/article supplied for this contract shall be of the best quality and in accordance with the specification as indented and if the drugs/ articles are discovered not to conform to the description and the quality afore said have deteriorated, the purchaser in that case will be entitled to reject the said article or such part thereof as may be found

not conforming to the said description and quality. On such rejection such article(s) or such part thereof as the purchaser may decide, will be replaced forthwith, failing which the same may arise by reason of breach of the condition of the contract or otherwise. The decision of the Purchaser in that behalf will be final and conclusive. The supplier shall certify the supplied medicine being Branded or Generic and shall send bills accordingly; however, final decision as to whether a medicine is Branded or Generic shall be as decided by the ESIC.

12. In case the ordered items are not used by the user departments within 03-days of the supply because of unforeseen circumstances like death of the patient, transfer out of the patient, patient discharged etc, the same should be taken back by the supplier at his own risk and cost.

13. Payment Terms:

a) Presentation of bill; The Supplier shall present separate bill for each purchase order at the time of supply of drugs and dressings.

b) Each bill should contain bill amount (with split up of taxable value + GST), bill number & date, reference purchase order number & date, name, address and GST registration number of the Chemist.

c) GST deduction is applicable as per rule.

d) GST TDS and Income Tax TDS on the value excluding the GST on Medicine shall be deducted while settling the bills as applicable under the law.

e) Payments will be made after the certification of drugs whether it is the exactly ordered Generic or branded drugs by the stores along with acknowledged copy of GRN.

f) The Party shall claim payments once in a month.

g) Payment of the bills prescribed in complete forms and in time will normally be arranged within 30 days from the date of presentation. However, no claim shall be made by the Supplier against the ESI Corporation in respect of interest or damage in case the payment is delayed for any reason beyond the control of ESI Corporation.

h) The payment shall be made through electronic mode only (RTGS/NEFT). Hence bank details to be submitted along with the bills. (Bank, Branch, A/c No., IFSC & MICR).

i) The purchaser reserves right to demand in any case, the original of the supplier's invoices for verification of the Net Trade Price claimed by the Supplier.

14. Inspection of Store: Supplies shall be accepted subject to inspection by Medical Superintendent, ESIC Hospital, Adityapur or his assigned representative. Any defect found in the materials will render the supplies open to rejection and decision of the Medical Superintendent, ESIC Hospital, Adityapur shall be final and legally binding. The rejected drugs shall be returned to the suppliers at their risks and costs.

15. The successful bidder shall, whenever called upon to do so give full information with reference to the services in hand and shall also permit the Medical Superintendent or any other officer nominated by him to inspect the premises of the tenderer at all reasonable times and shall give full assistance and information as may be required by him in connection with the contract.

16. Responsibility for executing contract:

a) The Supplier is to be entirely responsible for the execution of the contract in all respects in accordance with the terms and conditions as specified in the acceptance of tender.

b) The Supplier shall not sublet transfer or assign the contract or any part thereof. In the event of the Supplier contravening this condition, Medical Superintendent shall be entitled to place the contract elsewhere on the Suppliers account at his risk and the Supplier shall be liable for any loss or damage, which the Medical Superintendent, ESIC Hospital, Adityapur, may sustain in consequence or arising out of such replacing of the contract.

c) The Supplier will maintain sufficient stock of the standard quality of medicines at all times to avoid inconvenience to ESI Beneficiaries. The Supplier will also maintain sufficient stock of generic division of the reputed /leading manufacturers of drugs. The Supplier will indicate Batch number, Name of manufacturer and Expiry date on delivery challans/ invoices at the time of supplying the drugs at ESIC Hospital, Adityapur.

d) Indents are to be accepted, only if duly countersigned by the Medical Superintendent/Store in charge of the Hospital.

17. Recovery of sums due: Whenever any claim for the payment of a sum of money arises out of or under this contract against the Supplier (local chemist) the purchaser shall be entitled to recover such sum by deduction from any sum then due or which at any time thereafter may become due to recoverable under this or any other contract with the purchaser. Should this sum not be sufficient to cover the full amount recoverable, the Supplier shall pay to the purchaser on demand the remaining balance due.

18. The orders shall be placed through email ID on the dedicated email ID of the supplier. Further, the email IDs from which the orders shall be placed by the Hospital, shall be intimated in advance to the supplier to ensure genuineness and authenticity of the orders placed.

19. After obtaining the order as specified in clause above, the Supplier shall supply the materials as per order. In case of order placed by the store on Saturday the supply shall be made on the next working day and for emergency orders supply will be made to the respective wards as mentioned in the requisition (verbal/written). In emergency and exceptional situations, drugs and dressings supplied outside office hours will be received by the officials of Casualty department but the Supplier will ensure that the challan is re-verified in the medical store department on the immediate next working day.

20. The Supplier or his representative should be available / approachable for 24 hours over phone or email for supply of drugs and dressings. In case of any emergency requirement, if the order is placed for any item any time, the requisitioned item shall have to be supplied immediately. The contact telephone number and mobile number must be provided to the hospital authority for such purpose.

21. During normal office hours, the Medical Store Section will receive the drugs, dressings etc. and will verify the 'maximum retail price' & other particulars and certify on the challans as well as bills.

22. Against each item, the Maximum Retail Price (MRP), selling price, taxes claimed, etc., must be clearly mentioned along with the batch/lot no, Manufacturing

g date, Expiry date, in the daily challans and the bills submitted fortnightly.

23. All Challans as well as the Bills are to be submitted strictly in triplicate. Bills should be pre receipted with application of revenue Stamp wherever necessary. Care should be taken to submit the challans and bills duly completed and without any errors to prevent rejection / cancellation / delay in their processing of bills.

24. All items / drugs / dressings must have sufficient useful life for use in hand, before it is supplied to this hospital.

25. Validity of Rates quoted: The rates quoted will remain valid for a period of Two years from the date of signing of agreement and extendable for One more year on mutual consent basis at the same price, terms & conditions of the bid.

26. The Medical Superintendent has full power to cancel the contract between the contract tenure.

27. Force majeure clause.

a. The Supplier shall not be liable for liquidated damages or termination for default, if and to the extent that its delay in performance or other failure to perform its obligations under the contract is the result of an event of Force Majeure.

b. For purpose of this clause, "Force Majeure" means an event beyond the control of the supplier and not involving the supplier's fault or negligence and not foreseeable. Such events may include, but are not restricted to war, or revolutions, fires, floods, epidemics, quarantine restrictions and freight embargoes.

c. If a Force Majeure situation arises, the supplier shall promptly notify the Medical Superintendent, ESIC Hospital, Adityapur in writing of such conditions and the cause thereof. Unless otherwise directed by the purchaser in writing, the supplier shall continue to perform its obligations under the contract as far as reasonably practical, and shall seek all reasonable alternative means for performance not prevented by the Force Majeure event.

28. Arbitration:-

a. Any dispute and differences relating to the contract in respect of which amicable settlement has not been reached, shall be referred to the Sole Arbitration of the Arbitrator appointed by Medical Superintendent ESIC Hospital, Adityapur who shall proceed as per the Arbitration Act, 1996 (as amended)

b. Jurisdiction of Adityapur :- Any dispute arising out of this contract shall be subject to jurisdiction of Courts/tribunals etc as applicable to Adityapur only.

a. The work under the contract shall continue, during the Arbitration proceedings.

b. The award of the Arbitrator shall be final, conclusive and binding on both the parties.

29. Price bid:

Subject to satisfaction of all terms and conditions of this tender, the bidder quoting the highest discount offer shall be awarded the contract. If more than one bidder quotes the highest discount offer, as per guidelines in GeM portal, the buyer shall have two options for placement of contract.

a. Placement of Algorithm run by GeM system

(or)

b. Placement of contract on any one of the bidders who has quoted highest discount offer based on any criteria as deemed fit by the buyer with appropriate internal approvals.

30. Documents to be uploaded by the bidder

- i. Valid drug license for retail chemists as per Drugs & cosmetics Act.
- ii. Experience of 03 financial years for similar work – Copies of work order, satisfactory certificates, invoices shall have to be furnished.
- iii. Annual Turnover certificate.
- iv. Undertaking – as per Annexure – A

Annexure – A Undertaking

To
The Medical Superintendent,
ESIC Hospital,
Adityapur – 831013.

Respected Sir,

1. I/We hereby undertake that my/our Chemist Shop/Commercial Establishment is within 15 KM distance from ESIC Hospital, Saldih Basti, Nr. Ashiana More, Adityapur – 641 603.
2. The undersigned certifies that I/ we have gone through the terms and conditions mentioned in the tender document including annexures are acceptable to me/ us and I/ we undertake to comply with them. The rates quoted by me/us are valid and binding on me/us for acceptance for the period of two years from date of finalizing of the tender and extendable for one more year.
3. It is certified that rates quoted are the lowest quoted by me/ us for any other Institution/Hospital in India.
4. I/We give the rights to Medical Superintendent, ESIC Hospital; Adityapur to forfeit the Earnest Money deposited/ Security Deposit submitted by me/us if any delay occurs on my/ our part or fails to supply the article or fails to fulfill contractual obligation(s).
5. Firm will give an undertaking to the hospital that they will provide an uninterrupted supply of Drugs and Dressings throughout the contract period.
6. I/we hereby undertake that there is no vigilance/CBI case or court case pending against the firm/supplier.
7. I/we hereby undertake that there is no case pending against the firm/supplier

under the Drugs and Cosmetic Act and Rules there under.

8. I/we hereby undertake that my/our firm shall not have been blacklisted by any Govt./PSUs.

9. On Inspection if any article is found not as per supply order, it shall be replaced by me/us in time as asked for, to prevent any inconvenience, at my/our own expenses.

10. I/we hereby undertake to supply the items as per directions given in supply order within the stipulated period.

11. I/We undertake that the firm is having experience in this business for three or more years.

12. I/we understand that Medical Superintendent, ESIC Hospital Adityapur, has the right to accept or reject any or all the tenders in part or full without assigning any reasons (s) thereof.

Date:
the Bidder:
Place:
Designation:
Address: (Office seal of the bidder)

Signature of

Full Name:

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.

8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

This Bid is governed by the [सामान्य नियम और शर्तें/General Terms and Conditions](#), conditions stipulated in Bid and [Service Level Agreement](#) specific to this Service as provided in the Marketplace. However in case if any condition specified in सामान्य नियम और शर्तें/General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement, then it will over ride the conditions in the General Terms and Conditions.

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने

व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा |/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---